



ADMINISTRATIVE POLICY

Number: V-9
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Revised: 9/13/2018
Jurisdiction: City Council

MOBILE COMMUNICATION DEVICE (MCD) USE POLICY

I. **PURPOSE**

The purpose of this policy is to provide clear guidelines for the authorization, distribution and appropriate business use of Mobile Communication Devices (MCDs) by City employees and for the establishment of a cellular phone allowance.

II. **POLICY**

The City of Capitola recognizes that cellular Mobile Communication Devices (MCDs) enhance the level of City services by allowing employees to remain in contact with the office or with one another as the need arises. Technology has now made the MCD both practical and economical for work-related use and this policy establishes procedures and conditions for their authorization and use, to ensure accountability and to prevent improper use. This policy applies to the use of City issued cellular phones and the use of personal cellular phones for City business. The use of licensed frequency radio communication devices by personnel in the City Police Department is excluded from this policy.

III. **DEFINITIONS**

Mobile Communication Devices (MCDs) include any mobile communication device that provides for voice and/or data communications between two or more parties including, but not limited to, a cellular telephone, a text message device, a personal digital assistant, a smart phone, an air card, or a tablet that utilizes a wireless signal to provide Internet access.

Emergency responders are those employees the City Manager determines to have an essential role in responding to City emergencies.

IV. **PROCEDURE**

A. PLAN ELEGIBILITY: The City Manager has the responsibility of determining who shall be issued a City cell phone and who shall be part of a voice or voice/data stipend. The following criterion are to be considered:

1. Departmental requirements indicate having a cell phone is an integral part of performing the duties in the job description.
2. Performance of work that requires the employee to be out of the office on a regular basis where availability of conventional telephones is limited, and the employee needs to be in contact with the office or key City personnel at all times.
3. Required to be on-call outside of normal work hours.
4. Critical decision maker.
5. Quantity of calls/minutes used.
6. Need for access and frequent updates to calendar, email, contacts, SMS and files while not in the office.

B. PLAN TYPES: The City provides for a two-tier cellular phone system.

1. City-Issued Cell Phones: The City contracts with a service provider for a pool of minutes to be accessed by users using a City-issued Cellular phone. The City recognizes the employees will on occasion, need to make or receive personal telephone calls subject to the limitations in 3(b) of this policy.
2. Monthly Cell Phone Stipend: The City issues stipends to eligible employees who in turn provide their own cell phone to use for City business.

C. CITY-ISSUED CELL PHONES

1. Cell phones and wireless electronic data devices may be issued to employees to enhance the efficiency and effectiveness of communication. The City shall ensure

- that cell phone use is appropriate and that public funds are prudently spent.
2. A City-owned cell phone are intended to be used for official City business. Personal use of City cell phones should be kept to a minimum.
 3. Employees should immediately report unauthorized use, theft or loss of a City-owned phone to their supervisor and/or Department Head and the City Information Technology staff. In the case of a lost or damaged City-owned phone or accessory, the employee may be responsible for reimbursing the City for the value of the equipment if the employee is determined to be negligent for its loss.
 4. All MCDs that are used for City business may be subject to the Public Records Act.
 5. All communications on a City-owned cell phone are subject to monitoring and the employee shall consent to such monitoring at the time of receipt of the City-owned cell phone.

D. MONTHLY CELL PHONE STIPEND

1. In lieu of a City-issued cellular phone, an employee may be paid a stipend for use of their personal cell phones for City business. The City Manager will determine which employees will be eligible.
2. Allowance amounts will be in the amount of:
3. \$45 per month for cellular and data.
4. The monthly allowance is intended to cover the portion of an employee's cell phone costs related to City business, and not off-set the entire cost of a cell phone.
5. The allowance shall be paid to the designated employee by the City on a bi-weekly basis and is subject to required taxes.
6. Employees who receive a stipend must provide the City a cell phone number where the employee can be reached.
7. The cell phone will be personally owned and under the responsibility of the employee. As the cell phone is personally owned by the employee, and the provided allowance is taxable income, the employee may use the cell phone for both business and personal purposes, as needed.
8. Employees approved to receive a stipend shall be responsible for purchasing their own cell phone and enrolling it in their own monthly access plan.
9. Failure to carry the designated cell phone or respond to calls may lead to revocation of cell phone stipend.
10. Non-Exempt employees shall not use the data portion of their cell phone for city business during non-working hours without prior approval from their supervisor.
11. All work-related communications on cell phones under the City's monthly cell-phone stipend are subject to monitoring and the employee shall consent to such monitoring upon initial receipt of the stipend.

E. SAFETY

1. State law prohibits the use of cell phones while operating a vehicle unless the driver is using a hands-free device. There are two (2) exceptions to the law:
 - a. Emergency services personnel are exempt from this law when operating an authorized emergency vehicle.
 - b. The law does not apply to persons using their cell phone to contact law enforcement or public safety agencies for emergency purposes.
2. With the exception of the above, employees shall not operate cellular phones and other wireless devices that may distract from safely operating a motor vehicle. Using cell phones or other devices while driving leads to increased risk of accident and liability to the City. To limit this risk, all employees shall adhere to the following:
 - a. Use a hands-free device if employee must make or receive a call.
 - b. Make calls before starting the vehicle and proceeding to your destination.
 - c. Pull over or park in an appropriate manner before initiating a call.
 - d. Allow voice mail to handle the incoming calls and return them at your safe convenience.
 - e. Personal calls, except emergencies, while operating a City-owned vehicle are prohibited.

- f. Suspend conversations during hazardous driving conditions or situations.
- g. Do not take notes, look up phone numbers, or text message while driving.

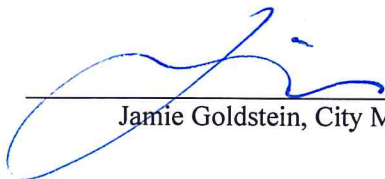
F. SECURITY

1. Regardless of the cell phone or wireless device option that is chosen (City-issued or Stipend), MCDs connected to the City of Capitola internal network may be required to) software installed which will allow the City of Capitola to locate, disable and otherwise manage the MCD and any City of Capitola information or applications enabled or stored on the device in a secure fashion. Employees may not tamper with or disable the software. The City of Capitola is responsible for the selection and installation of the MOM software and will assume the cost for applicable software license fees.
2. Upon termination of employment, or a determination by the employee or the employee's Department Head that the employee no longer has a need to access the City of Capitola network via a personally owned cell phone or wireless device, the systems administrator shall be notified to remove the software and all related City of Capitola data from the employee's cell phone or wireless device.

G. PRIVACY

1. When using a City-issued MCD, or when conducting City of Capitola business on a personally owned MCD, the City of Capitola cannot and does not imply, extend, or guarantee any "right to privacy" for voice calls and/or electronic communications, including, but not limited to call detail records, logs, voice mail messages, data storage, text messages, emails and address books.

This policy was approved by the City Council at its meeting of September 13, 2018, and is authorized by:



Jamie Goldstein, City Manager